

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
A.S. by his mother and natural guardian,
CRYSTAL STRAKER and CRYSTAL STRAKER
Individually,

Plaintiffs designates
New York County
the place of trial

Plaintiffs,

The basis of venue is
Location of incident

- against -

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER ALEXANDER SANCHEZ,

SUMMONS

Plaintiff resides at:
452 E. 105th St., Apt. 6C
New York, NY 10029

Defendants.

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To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 19, 2024

Yours etc.,

David A. Karlin, Esq.

BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

Defendant(s) Address(es):

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ
Police Service Area 5
221 E. 123rd Street
New York, New York 10035

BELOVIN FRANZBLAU & ASSOCIATES, PC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
A.S. by his mother and natural guardian,
CRYSTAL STRAKER and CRYSTAL STRAKER
Individually,

VERIFIED COMPLAINT

Index No:

Plaintiffs,

- against -

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER ALEXANDER SANCHEZ,

Defendants.
-----X

Plaintiffs, by and through their attorneys, **BELOVIN
FRANZBLAU & ASSOCIATES, PC**, as and for a verified complaint,
respectfully allege as follows:

1. At all the times herein, infant plaintiff, **A.S.**, was,
and still is, a resident of the State of New York, County of New
York.

2. At all the times herein, plaintiff, **CRYSTAL STRAKER**,
was, and still is, a resident of the State of New York, County
of New York.

3. At all the times herein, the defendant, **THE CITY OF
NEW YORK**, was, and still is a duly licensed Municipal
Corporation authorized to transact business in City of New York,
County of New York, State of New York.

BELOVIN FRANZBLAU & ASSOCIATES, PC

4. Upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, who was herein duly employed and acting as a Police Officer (or other ranking officer) with the police department of **THE CITY OF NEW YORK**.

5. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer).

6. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with **THE CITY OF NEW YORK**.

7. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with **THE NEW YORK CITY POLICE DEPARTMENT**.

8. THE CITY OF NEW YORK condoned all of the actions of NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ, as set forth herein and hereinafter.

9. The defendant, THE CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendant, NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ, pursuant to the doctrine of respondeat superior.

10. The defendant, THE CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendant, NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ, and all other uniformed officers with whom P.O. SANCHEZ acted, pursuant to the doctrine of respondeat superior.

11. The defendant, THE CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendant, NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ and others within THE NEW YORK CITY POLICE DEPARTMENT, pursuant to the doctrine of respondeat superior.

12. Upon information and belief, THE CITY OF NEW YORK, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ, as herein and hereinafter set forth.

13. Upon information and belief, THE CITY OF NEW YORK, at all times herein, expressly and/or implicitly condoned all of

the acts of the defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and all other uniformed officers with whom P.O. SANCHEZ acted, as herein and hereinafter set forth.

14. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ** and all of the acts of **THE NEW YORK CITY POLICE DEPARTMENT**, as herein and hereinafter set forth.

15. Upon information and belief, each and all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, alleged herein was done, both as an individual and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York, and under the authority and/or color of his authority and his position as a Police Officer (or other ranking officer) for the defendant, **THE CITY OF NEW YORK**.

16. Upon information and belief, on or about August 19, 2023 at approximately 10:00 p.m., the infant plaintiff, **A.S.**, was lawfully and properly in the vicinity of 452 E. 105th Street, New York, New York.

17. Upon information and belief, while the infant plaintiff was at the time, date and location as set forth herein, he was unlawfully, improperly and without probable or

sufficient cause, wrongly targeted, profiled, singled out, violated, held, detained, searched, and infant plaintiff was unlawfully handcuffed, detained, arrested and imprisoned.

18. Upon information and belief, the defendants, **CITY OF NEW YORK** and **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and other uniformed officers with whom P.O. SANCHEZ acted, unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out, violated, searched, held, detained, searched, arrested and imprisoned the infant plaintiff, and the infant plaintiff was aware of all such actions and did not consent to any such actions.

19. Upon information and belief, the defendants, **CITY OF NEW YORK** and **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and other uniformed officers who whom P.O. SANCHEZ acted, unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out, violated, held, detained, searched, arrested and imprisoned, and the accusations by defendants that the infant plaintiff had committed a crime were unsupported by evidence, by a reasonable interpretation of the evidence, by facts, were false and improper and infant plaintiff was wrongfully and unlawfully detained, held, arrested, searched, arrested and imprisoned despite the lack of sufficient facts and/or evidence.

20. Upon information and belief, during the time the infant plaintiff was unlawfully held at the scene of this incident, the police vehicle and/or at the police precinct, the infant plaintiff was forced to undergo great emotional and mental anguish and emotional and physical harm, and loss of liberty and freedom, and was kept and imprisoned against his will, and infant plaintiff was also forced to undergo great emotional and mental anguish thereafter.

21. Prior to the commencement of this action, on or about the 21st day of September, 2023, a Notice of Claim was duly served herein on the defendant, **THE CITY OF NEW YORK**, resulting in infant plaintiff undergoing a 50-H hearing on or about the 19th day of December, 2023 pursuant to the General Municipal Law. At no time prior to this action being brought, did the defendant or any of the defendants' representatives, settle or seek to settle this claim. This action is timely and properly brought.

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AGAINST THE
CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ALEXANDER
SANCHEZ**

22. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "21", above as if fully set forth herein.

23. On August 19, 2023 at approximately 10:00 p.m., the infant plaintiff was lawfully and properly in the vicinity of 452 E. 105th Street, New York, New York.

24. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely arrested.

25. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out, violated, held, detained, and searched without sufficient justification or just cause, and infant plaintiff was unlawfully and improperly handcuffed, detained, arrested and imprisoned.

26. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out, violated, held, detained, searched, arrested, handcuffed and imprisoned, all without probable cause or justification and all was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom P.O. SANCHEZ acted.

27. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out,

violated, held, detained, searched, arrested, handcuffed, and imprisoned, all without probable cause or justification and all precipitated by the unlawful and improper actions of the defendants herein and/or those uniformed officers with whom P.O. SANCHEZ acted, and infant plaintiff was aware of all such actions and did not consent to any such actions.

28. Upon information and belief, by the reason of the aforesaid **FALSE ARREST** of the infant plaintiff by the defendants, the infant plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which infant plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and infant plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
AGAINST THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER
ALEXANDER SANCHEZ

29. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "28", above as if fully set forth herein.

30. On August 19, 2023 at approximately 10:00 p.m., the infant plaintiff was lawfully and properly in the vicinity of 452 E. 105th Street, New York, New York.

31. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely imprisoned.

32. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out, violated, held, detained, and searched without sufficient justification or just cause, and infant plaintiff was unlawfully and improperly handcuffed, detained, arrested and imprisoned.

33. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out, violated, held, detained, searched, arrested, handcuffed and imprisoned, all without probable cause or justification and all was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom P.O. SANCHEZ acted.

34. Upon information and belief, on August 19, 2023, infant plaintiff was unlawfully, improperly and without probable or sufficient cause, wrongly targeted, profiled, singled out,

violated, held, detained, searched, arrested, handcuffed, and imprisoned, all without probable cause or justification and all precipitated by the unlawful and improper actions of the defendants herein and/or those uniformed officers with whom P.O. SANCHEZ acted, and infant plaintiff was aware of all such actions and did not consent to any such actions.

35. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the infant plaintiff by the defendants, the infant plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which infant plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and infant plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR VIOLATION OF INFANT
PLAINTIFF'S CIVIL RIGHTS PURSUANT TO 42 USC §1983 AGAINST NEW
YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**

36. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "35", above as if fully set forth hereinafter.

37. Upon information and belief, during all the times herein, the individual defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of New York, City of New York.

38. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, engaged in improper and/or illegal conduct herein before and hereinafter mentioned to the injury of the infant plaintiff and deprived infant plaintiff of the rights, privileges and immunities, secured to the infant plaintiff by the Constitution of the United States, and Federal Laws of the United States.

39. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, engaged in illegal conduct herein mentioned to the injury of the infant plaintiff and deprived infant plaintiff of the rights, privileges and immunities secured to the infant plaintiff by the Constitution of the United States, and Federal Laws of the United States in falsely and improperly targeting, stopping, searching, detaining, holding, arresting and imprisoning the infant plaintiff, and depriving the infant plaintiff of his constitutional rights and annuities secured by the United States Constitution, to wit, freedom from: illegal seizure, illegal

search, violative search, illegal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983. Upon information and belief, the defendant acted knowingly and purposely with the specific intention to deprive the infant plaintiff of his aforementioned rights.

40. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department and **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and constituted a continuing pattern of abuse and misconduct by the New York City Police Department in general and specifically, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, and said misconduct and official unconstitutional policy caused infant plaintiff to be subjected to the aforesaid conduct and deprived of his constitutional rights.

41. Upon information and belief, at all times herein, **THE CITY OF NEW YORK** condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring number of 42 USC § 1983 claims filed against **THE CITY OF NEW YORK** and/or the New York City Police

Department and this official unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations as well as repeatedly shown by the actions of the New York City Police Department.

42. Upon information and belief, as a direct and proximate result of the conduct by the defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, the infant plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the infant plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

43. Infant plaintiff hereby demands compensation and punitive damages against defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, together with reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS, CITY OF NEW YORK AND NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ ON BEHALF OF PLAINTIFF, CRYSTAL STRAKER

44. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "43", above as if fully set forth hereinafter.

45. The plaintiff, **CRYSTAL STRAKER**, is the mother and natural guardian of the infant plaintiff, **A.S.**

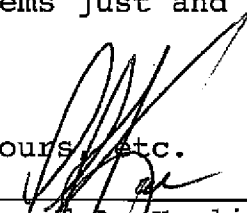
46. By reason of the actions of the defendants aforesaid, the plaintiff, natural guardian of the infant plaintiff, sustained a loss of services and has had to deal with and will in the future have to deal with, issues, concerns, and emotional injuries related to the care, treatment and mental health of the infant plaintiff. By reason thereof, the plaintiff demands compensation in an amount exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, infant plaintiff demands judgment against the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action for FALSE ARREST, and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action for FALSE IMPRISONMENT, and in amount exceeding the jurisdictional limits of all lower Courts plus attorney's fees and punitive damages on the Third Cause of Action against defendant, **NEW YORK CITY POLICE OFFICER ALEXANDER SANCHEZ**, for CIVIL RIGHTS VIOLATIONS, and Plaintiff, **CRYSTAL STRAKER** demands an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action against all defendants, for

LOSS OF SERVICES, together with costs, interest and disbursements of this action, and together with such other and further relief as this Court deems just and proper.

Dated: Bronx, New York
March 19, 2024

Yours, etc.



David A. Karlin, Esq.

BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiffs
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

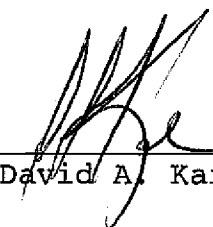
VERIFICATION

State of New York)
 : ss.:
County of Bronx)

The undersigned, an attorney admitted to practice in the Courts of New York State, shows that the deponent is the attorney of record for the Plaintiff(s) in the within action; deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, deponent believes it to be true. This Verification is made by deponent and not by Plaintiff(s) because Plaintiff(s) are without the county wherein deponent maintains his offices. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows: independent investigation, records, papers and documents in the file, conversations, communications and correspondence with the Plaintiff(s).

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York
March 19, 2024



David A. Karlin